



EAGLE MOUNTAIN CITY COUNCIL MEETING MINUTES

October 5, 2021, 4:00 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

4:00 P.M. WORK SESSION – CITY COUNCIL CHAMBERS

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. Councilmember Jared Gray was excused.

CITY STAFF PRESENT: Steve Mumford, Assistant City Administrator/Community Development Director; Kimberly Ruesch, Finance Director; Robert Hobbs, Planning Manager; Tayler Jensen, Senior Planner; Fionnuala Kofoed, Director of Administrative Services/City Recorder; Elizabeth Fewkes, Recording Secretary; Chris Trusty, City Engineer; Aaron Sanborn, Economic Development Director; Jeremy Cook, City Attorney; Brad Hickman, Parks and Recreation Director; Zac Hilton, Streets and Storm Drain Manager; Jeff Weber, Fleet and Facilities Operations Director; Eric McDowell, Chief Deputy Sheriff; Tyler Maffitt, Communications Manager; and Robert Ballif, Engineering Assistant.

CITY STAFF PRESENT ELECTRONICALLY: Jessa Porter, Planner; Mack Straw, Public Utilities Manager; Angela Valenzuela, Human Resource Manager; Michele Graves, Library Director; and Chas Glenn, Administrative Assistant.

Mayor Westmoreland called the meeting to order at 4:14 p.m.

1. CITY ADMINISTRATOR INFORMATION ITEMS

1.A. UPDATE – City Administrator Items

Water

- The ponds passed compaction testing for the rapid infiltration basin and the lines will be connected and the road will be paved by Thursday.

Engineering

- Pony Express Parkway – Storm drain is being installed on the northbound lanes between Eagle Mountain Boulevard and Bobby Wren Boulevard. Paving is anticipated to be completed this month.
- Phase 1 of Airport Road is on schedule to be paved within the next week.

Parks

- Cory B. Wride Memorial Park Phase 2 – Punch list items and the electrical work is being completed. The power connection for lighting should be completed within two weeks. The change order was removed from the agenda to verify pricing prior to Council approval.

- SilverLake Woodhaven Park – The power system should be complete and connected this week and punch list items are being completed.
- Smith Ranch Community Park – Staff is working on construction document details and more updated information will be available once the documents are completed.
- Pony Express Park – An amendment is on tonight's agenda to fund the fencing for the dog park. Staff will complete some of the work and is receiving bids for the fencing.
- Cedar Valley Mountain Bike Team – Approximately 200 volunteers, including team members, and City staff assisted with a trail cleanup project. A regional race was held last Saturday.

1.B. PRESENTATION – Communities That Care

Caryn Nielsen with Communities That Care and co-chair of the Alpine School District Suicide Prevention Collation stated that donations provided for magnets with suicide prevention information and resources to be mailed to all households within the district area. Two Eagle Mountain employees from their board were trained in the Question, Persuade, Refer (QPR) Program. Five board members are now trained in QPR and quarterly trainings will be held for new members. Daily activities during Suicide Prevention Week were held to assist with prevention efforts. They requested and were awarded \$13,100 in State funding to assist with prevention efforts and received \$1,000 in spatulas when they won the Parents Empowered state-wide content. As September is Family Meals Month, they provided Breakfast On Us kits for all the students and their families at Rockwell Charter High School, and students assisted with assembling the kits. Students at Cedar Valley High School are in charge of organizing a Halloween 5K Fun Run and one-mile trick or treat run to be held Wednesday, October 27, 2021. Registration is from 5:00 to 6:00 p.m. with start times shortly after 6:00 p.m. The \$5 entry fee includes a t-shirt and swag bag. Communities That Care strives to assist with raising healthy, productive adults by assisting youth through their organization's social development strategy in action which combines opportunities, skills, and recognition to result in youth bonding to healthy adults and making better choices. Their activities are data-driven and the results of the Student Health And Risk Prevention (SHARP) survey will be available soon. They will report on the survey results to the Council in January 2022.

1.C. DISCUSSION – Porter's Crossing Concept Plan

Planner Tayler Jensen presented the item. The concept plan proposes changes to Pods 1, 2, 9a, 9b, 10, and 15 of the Porter's Crossing Town Center Master Development Agreement (MDA) and Master Development Plan (MDP).

Applicant representative Khosrow Semnani reviewed the history of the development agreement and project. The approved agreement allows for 180 units of mixed-use residential in Pod 2. They feel that more commercial uses in Pod 2 would be better for both them and the City. The approved agreement lists a recreation center and assisted living/senior housing in Pod 9a. Because the recreation center is not being built and the demand for and interest in commercial uses along Pony Express Parkway has increased, they desire to relocate the apartments from Pod 2 on the south of the project to the northwest portion of the development. They desire flexibility in the design standards and unit location in order to be able to develop the full number of units and density vested in the approved agreement.

Applicant representative Jory Walker, Principal Design Architect for Beecher Walker Architects, said that Eagle Mountain City lacks walkable areas with secure parking and suggested allowing four- or five-story buildings with a lower level of secure parking with apartments above and resort-style amenities on top of the podium. Increasing the allowable density would allow them to do a higher-end product.

Councilmember Curtis said the type of developments described are not desired by the City nor Eagle Mountain residents and he would not be interested in such projects. The zoning requirements are by design and walkability in the City is implemented through the trail system and open-feel.

Mr. Semnani explained that the retail concept has individual, multi-tenant buildings which allow more frontage, which is preferable to businesses than a strip mall layout or mixed-use building, with a park-like amenity with a fountain in the center. They would like the opportunity to present a five-story building for Pod 9b utilizing the 20 units per acre permitted in the MF2 zone to permit 16-unit buildings rather than the 12 units per acre requirement to meet the apartment housing market needs. The current market does not have the necessary demand for a senior or assisted living community.

Councilmember Curtis noted that the applicant could develop the retail site without an amendment to the agreement regardless of whether they include the 180 mixed-use units. Upon the City's forthcoming, official notification to the applicants that the recreation center will not be constructed, the MDA stipulated that the zoning for Pod 9a reverts to residential, institutional, or commercial zoning and the density of residential is not to exceed the density in 6B which has 42 units on 10.2 acres. Pod 9b is restricted for senior or assisted living uses which are important to the City and the usual amenities were reduced due to the plan for the recreation center. The five-story building allowed in the MDA was specific to a deed-restricted assisted living and does not allow density to be utilized for traditional apartment buildings. Pod 10 is designated for civic uses and the new plan has housing in that location and Pod 15 was approved for RV storage and is presented as multifamily parking. He has no desire to remove the deed restriction requirements for the senior housing and to allow the other changes as proposed as the City would be forfeiting benefits for undesired uses. As such, he would prefer the approved plan over the new proposal.

City Attorney Jeremy Cook confirmed that Pod 9a reverts to the uses and density as stated by Councilmember Curtis and would require a one-acre park and need to meet the current residential Municipal Code standards. Nothing in the agreement allows the 180-units or partial density from Pod 2 to be transferred elsewhere in the project.

Mr. Walker clarified that they are proposing additional retail as a benefit for the City in Pod 2 in exchange for being allowed to relocate the housing units approved for that location.

Discussion ensued regarding the terms of the MDA regarding unit vesting for 9a and 9b and the senior housing requirements for 9b in comparison to the new proposal.

Councilmember Clark recalled that she had struggled with approving the mixed-use in the approved proposal because the developments have not done well in other cities. The problem with

the applicants conducting market studies after a project has been approved is that the City has already agreed to the development plan. She is in favor of the additional retail uses but has safety concerns with transferring high-density housing to the northwest portion of the project due to the increase in traffic in an already congested area of the City and feels approving the proposal as presented would be irresponsible. Senior housing or assisted living would generate less traffic.

Councilmember Love agreed with concerns with the proposed density. Larger lots in the northwest portion of the development would be needed to be in harmony with transition code.

Councilmember Burnham said although she is not against apartments in general, she shares the concerns with the proposed location due to the existing density in the area. She supports the additional commercial uses as proposed in the retail concept plan.

Discussion ensued regarding the number of units approved for senior housing, the housing market for townhomes due to affordability, appropriate locations for multifamily uses in the City, the demands of the housing market west of I-15, and the townhomes proposed in Pod 10 conflicting with the transition code and the designated civic uses in the MDA.

Councilmembers Clark and Love suggested the applicants develop single-family homes or a school in the northwest portion of the development.

Mr. Semnani stated that he had reached out to the school district regarding placing a school there but the district was not interested, which is why they are proposing townhomes in Pod 10.

Councilmember Clark stated that the transition code prohibits townhomes in that location and a road is planned in the area as well.

The applicants proposed additional road connections to the northwest portion of the development to alleviate traffic concerns.

1.D. DISCUSSION – 7-Eleven Campus Drive Traffic

Mr. Jensen presented the item. On June 22, 2021, the Planning Commission recommended approval of the site plan and rezone for a 7-Eleven on Campus Drive, based in part on the traffic letter the applicant had submitted. Prior to scheduling the project for a City Council approval, a full traffic study was required by staff. Although the staff report noted that the results of the traffic study show the intersection of Campus Drive and Ranches Parkway operating at a level of service (LOS) F before the project, City Engineer Chris Trusty clarified that the intersection operates at a LOS D before the project, and an LOS F once the project is in place. The traffic study found that no mitigation was possible. Staff is concerned about bringing any project forward due to the results of the traffic study and is seeking feedback from the City Council on what is appropriate development along Campus Drive given that it already operates at a LOS D and any further development will only increase the burden on the road, staff is seeking feedback before bringing additional items forward for consideration. Feedback is requested regarding if the Council is comfortable reviewing applications such as the one for 7-Eleven, or if conditions/changes could increase the comfort level of the Council for considering development in this location.

Discussion ensued regarding safety concerns due to the traffic patterns and congestion at the intersection of Campus Drive and Ranches Parkway, the desirability of the 7-Eleven and benefit to the community, the likelihood of residents naturally avoiding a left-hand turn off Campus Drive onto Ranches Parkway, the 7-Eleven reducing left-hand turns out of Maverik, the impact to the other businesses and traffic pattern on Campus Drive, other businesses types in the area, and the inability to move the application forward until a solution is determined.

Mr. Trusty said the current average wait time for a left-hand turn onto southbound Ranches Parkway from Campus Drive is 34 seconds. Approving the application would increase the average wait time to 104 seconds. He clarified that the intersection currently has a LOS D and an additional business would reduce the score to a LOS F because the wait time exceeds 50 seconds.

Discussion ensued regarding potential solutions and their associated obstacles or limitation for research and consideration, including a road behind the businesses, relocating the access to Campus Drive farther south, prohibiting a left-hand turn onto Ranches Parkway from Campus Drive, instituting continuous flow traffic patterns, adding an additional access onto Wride Memorial Highway or Ranches Parkway, a roundabout, changing the zoning to uses that generate less traffic, removing a portion of the center median to allow southbound traffic to queue in the center lane, and only allowing a right-in/right-out to the 7-Eleven on Ranches Parkway.

Applicant representative Ryan Forsyth agreed that residents would likely patron both gas stations depending upon which is the most convenient based upon their direction of travel. He feels a second gas station would result in less of an increase in traffic than a unique use that would result in new trips.

Assistant City Administrator/Community Development Director Steve Mumford stated the issue impacts all future businesses in the area and will require a more in-depth, strategic traffic study with input from traffic engineers that design solutions for complex traffic issues.

Mayor Westmoreland suggested contracting with external traffic engineers in order to fast-track the project.

Mr. Trusty agreed with the value of seeking the advice of a traffic engineer with experience with similar traffic patterns and obstacles.

Mr. Forsyth verified that the concern is not with the right-turn-only access onto Ranches Parkway in their site design but is due to the increased traffic turning left onto Ranches Parkway from the existing Campus Drive access. The traffic study included potential mitigation of removing a portion of the median to allow cars turning left to turn into the middle lane prior to merging onto southbound Ranches Parkway.

Mr. Jensen said that the applicant has been working with the developer for the property to the left regarding aligning accesses. A Beto's and a strip mall with additional businesses are planned for the property east of the 7-Eleven.

1.E. UPDATE – Upcoming Planning Items

Mr. Jensen outlined the upcoming Planning items including animal/livestock Municipal Code changes, a rezone proposal to the PF zone for Fire Station 251 to allow for the reconstruction of station 251, an amendment to the preliminary plat and MDP for Spring Run Phase D moving the east-west collector road to provide better access to the property to the west, and accessory dwelling unit Municipal Code amendments to bring the City in line with recently updated State Code and to clarify and simplify standards.

2. AGENDA REVIEW

9. AGREEMENTS

9.B. AGREEMENT – Approving the First Amendment to the Executech Professional Service Agreement for IT Services.

Economic Development Director Aaron Sanborn explained the terms of the agreement to transition to a hybrid, helpdesk model, including 35 onsite contracted hours per month and 24/7 access for all information technology (IT) issues. The contract would remain month-to-month which would allow reverting to the current terms if the new arrangement proved problematic. The City has averaged \$2,000 a month in overages over the past six months due to increases in staff and transitioning of systems. Adapting to remote working during the pandemic used the previously banked hours with Executech. The hours of IT services needed for the City have expanded independently of the pandemic. The salary for an in-house IT specialist would cost approximately \$80,000 with benefits and an additional employee for redundancy would double the cost. A benefit of contracting with a company is the resources and collective knowledge exceeding what two employees could provide. New software implementation IT services are usually covered by the software company as a part of the contract.

Councilmember Curtis requested staff explore the costs and benefits of employing one full-time and one part-time or two part-time dedicated IT employees and requests for proposals to contract services with IT companies compared to the proposed agreement with Executech.

Councilmember Love concurred with considering employing an in-house full-time IT specialist.

Councilmember Clark suggested approving the agreement and putting out a request for proposals, as the month-to-month contract would allow the Council to make a change in the future should another option be more favorable.

Mayor Westmoreland adjourned work session at 6:31 p.m.

3. ADJOURN TO A CLOSED EXECUTIVE SESSION

7:00 P.M. POLICY SESSION – CITY COUNCIL CHAMBERS

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. Councilmember Jared Gray was excused.

CITY STAFF PRESENT: Steve Mumford, Assistant City Administrator/Community Development Director; Kimberly Ruesch, Finance Director; Tayler Jensen, Senior Planner; Fionnuala Kofoed, Director of Administrative Services/City Recorder; Elizabeth Fewkes, Recording Secretary; Chris Trusty, City Engineer; Aaron Sanborn, Economic Development Director; Jeremy Cook, City Attorney; Brad Hickman, Parks and Recreation Director; and Eric McDowell, Chief Deputy Sheriff.

CITY STAFF PRESENT ELECTRONICALLY: Paul Jerome, City Administrator; Tyler Maffitt, Communications Manager; Jessa Porter, Planner; Mack Straw, Public Utilities Manager; Zac Hilton, Streets and Storm Drain Manager; Jeff Weber, Fleet and Facilities Operations Director; Embret Fossum, UFA Battalion Chief; and Greg Stone, Emergency Management Intern.

4. CALL TO ORDER

Mayor Westmoreland called the meeting to order at 7:10 p.m.

5. PLEDGE OF ALLEGIANCE

Resident Bettina Cameron led the Pledge of Allegiance.

6. INFORMATION ITEMS/UPCOMING EVENTS

- Eagle Mountain City will be holding Adaptive Trick-or-Treating on October 16th. This event is for all individuals with disabilities who may not be able to participate in our traditional Halloween Town. Pre-registration is required. Find more information on our City social media.
- Join us for Eagle Mountain's Halloween Town and Car Show. This event will take place at Cory Wride Memorial Park from 11:00 a.m. to 2:00 p.m. on October 23rd. Join us for trick-or-treating from local vendors. Food trucks will be on-site for residents to purchase meals.
- Eagle Mountain City would like to welcome Google to the community.

To receive City notifications, including emergency info, news events, and traffic alerts, sign up at emcity.org/notifyme.

7. PUBLIC COMMENTS

Mayor Westmoreland open public comment at 7:12 p.m.

Tawyna Hansen said she was speaking on behalf of many Parkside residents. She asked for the no parking restrictions to be extended on the east side of St. Andrews Drive due to parking issues that are obstructing traffic in her neighborhood and resulting in dangers to pedestrians. She requested parking enforcement to address trailer and motor home parking violations. Ms. Hansen also

submitted the following written comment: “Due to high density housing, parking on both sides of our city street is seriously impacting our neighborhoods. Add to that the illegal parking of Motor homes and trailers on both sides of the streets, we are struggling to get one car width to be able to drive down our street. Not only is this problematic but it is dangerous as there are many children darting out between cars and without room to swerve, it is becoming a great hazard. I propose that there on Gazelle Run by Ridley's, the east side of the street should be marked as "no parking" all the way down to St. Andrews. It currently is a "no parking" zone from Pony Express to the Porter Crossing townhomes driveway just past Ridley's on the east side, but this is not enough. The "no parking" zone needs to be continued up to St. Andrews on the east. Also, the street St. Andrews going west runs between two porter ranch townhomes and both sides of this street are being used for parking for those residences making it impassable and barely a one lane road. One side of the street needs to be a "no parking allowed" side to enable cars to go through. All of these townhomes have two car garages as well as extra spaces within the unit. Let's face it: Eagle mountain could use a parking enforcement officer.”

Mayor Westmoreland said that Streets and Storm Drain Manager Zac Hilton is working on methods to address parking issues in the City due to the impact on plowing and he will address the Council with options to address problems.

Emma Clark submitted the following written comment, “Sight Buddies, a program under CharityVision International, is a program devoted to helping kids first see, then learn. By partnering with us, local school districts can be supported as they strive to provide vision care to children in need. Please review these materials to find out more and contact emma@charityvision.org to being restoring sight and education to your kids! Thank you!”

Bettina Cameron spoke on behalf of Eagle Mountain Nature and Wildlife Alliance and announced that their citizen group, in partnership with the Department of Wildlife Resources (DWR), will be planting 3,300 shrubs in the wildlife corridor and requested volunteers to assist them on November 6th and 13th. Their citizen group requests that item 14.A. be tabled as they feel the terms of the agreement fail to meet the objective of the Wildlife Corridor Overlay Zone, preserve the habitat in the area, nor address sensitive areas such as the wash. They requested to meet with the City Council, staff, DWR, and the developer to discuss the terms of the conservation easement as soon as possible.

Mayor Westmoreland closed public comment at 7:26 p.m.

8. CITY COUNCIL/MAYOR'S ITEMS

Councilmember Clark

Councilmember Clark said she is excited to see so many residents at the meeting taking an interest in their community and the Council loves hearing from them. The Eagle Mountain Community Theater held auditions last week for a music review. She appreciates their efforts and the return of live performances. She and Councilmember Burnham had the opportunity to participate in a corn hole tournament held by the Gifts of Joy from Jordan Foundation that partnered with and raised funds for the Make a Wish Foundation. The event raised over \$15,000, enough money to fund granting three wishes.

Councilmember Love

Councilmember Love said it is great to see so many people in attendance. Last month the City participated in Childhood Cancer Month and identified nine children in the community battling cancer. United Fire Authority (UFA) met with two of the children individually and provided experiences for them. One child and her family rode in a hot air balloon and three other families will be having a horse-riding experience at Strides Pediatric Therapy. UFA participated in a welcome home party and an early Christmas celebration for Xander prior to his passing. She extended condolences to Xander's family.

Councilmember Burnham

Councilmember Burnham said she is honored to live in City with amazing residents that love and support each other.

Councilmember Curtis

Councilmember Curtis welcomed everyone and echoed the messages of support. He appealed to everyone to make time to disconnect from devices and to connect in person. He encouraged residents to serve one another as a way to repair animosity and division and appreciates public support expressed on social media.

Mayor Westmoreland

Mayor Westmoreland recognized Brittney Lee for intervening when a child was in duress when she was working at Village Pizza. People like her make Eagle Mountain better and safer.

Charlie Roland was recognized for the service he performed collecting trash around the City on his bicycle that he outfitted with a basket for trash collection purposes.

Brittney Lee and Charlie Roland were presented with challenge coins from the City.

Mayor Westmoreland stated that Google choosing to come to Eagle Mountain is a huge step in economic development for the City. The City planned for water to allocate for economic development to balance with residential development and agricultural usage needs to ensure a strong local economy moving into the future. Data centers are of high value and low impact. The companies have been great resources in expanding the City's infrastructure. The City followed State guidelines to conserve water and to manage flow to not overburden the system, pumps, and tank levels. The City is currently conducting a water survey. The City recognized that it would be wise to reserve allocation and have a redundant resource with the Central Utah Water Conservatory District to make sure the City has enough water. Google will only use a small portion of the reserve. The tax increment is less impactful than the infrastructure benefits. Eagle Mountain is a City of opportunity and has land but is lacking in infrastructure and the tax increment reduction is less impactful than the infrastructure development benefits of partnering with companies like Google. He thanked the City Council for their support of City economic development.

CONSENT AGENDA

9. AGREEMENTS

9.A. AGREEMENT – Approving the First Addendum to the Eagle Mountain Chamber of Commerce Management and Maintenance Agreement for Additional Ladder Sign Locations.

9.B. AGREEMENT – Approving the First Amendment to the Executech Professional Service Agreement for IT Services.

10. BOND RELEASES

10.A. Eagle Point Phase G, Plat 1 – Out of Warranty

10.B. Spring Run Phase D, Plat 1 – Out of Warranty

10.C. Spring Run Phase D, Plat 2 – Out of Warranty

10.D. The Landing Phase A, Plat 4 – Out of Warranty

11. CHANGE ORDERS

11.A. Airport Road Design Change Order #3 – Civil Science

11.B. Pony Express Widening Design Change Order #6 – Horrocks Engineers

11.C. Wastewater Treatment Plant Expansion Change Order #4 – FX Construction

12. MINUTES

12.A. September 21, 2021 Minutes – Regular City Council Meeting

MOTION: *Councilmember Curtis moved to approve the consent agenda with the condition that item 9B will move forward with the hybrid contract as presented and staff be directed to send out requests for bids for information technology services and investigate options for bringing information technology services in-house and present the findings to the City Council. Councilmember Clark seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. The motion passed with a unanimous vote.*

SCHEDULED ITEMS

13. ORDINANCE/PUBLIC HEARING

13.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Approving the Second Amendment to the Fiscal Year 2021-2022 Budget.

Finance Director Kimberley Ruesch presented the item. This is the second amendment to the Fiscal Year 2021-2022 budget and includes a request for increased funding in the General Fund of \$118,169 as well as the Capital Projects Fund in the amount of \$30,000. Within the General Fund, an additional FTE is being requested in the Project Management/Facilities Division for an Emergency Specialist/Coordinator. The need for this position is to help with Emergency Management. This person will help keep the emergency operation plan up to date and functioning, apply for grants, plan exercises and trainings, and create and maintain relationships with new stakeholders that arrive in the community. Proposed funding for this position has been pro-rated through the end of the fiscal year. Additional funding in this division is also being requested to cover repairs to the fire sprinkling system at City Hall. Information Technology Services division is requesting additional funding to transition our current service model with Executech to include a 24/7 service desk for all employees to be able to access technical support. The proposed revenue source for the requested expenditures is sales tax revenue that is coming in above projections. Within the Capital Projects Fund, an increase is being requested to fund the creation of a dog park area within the Pony Express Memorial Park. This project was reviewed with Council in September and recommend for funding. The proposed revenue source for this project is Park impact fees.

Mayor Westmoreland opened the public hearing at 7:57 p.m.

Michael Johnson thanked the Council for the help with lobbying for a dog park over the past four years. He appreciates the support from the Mayor and Council and for their efforts in making the City more desirable. They are restarting the Eagle Mountain Dog Park Foundation nonprofit and are awaiting 501(c) approval from the State. They have been contacted by two different companies offering to support their efforts. They will work with the Parks and Recreation Department on the dog park plan.

Mayor Westmoreland closed the public hearing at 8:00 p.m.

MOTION: *Councilmember Curtis moved to approve an ordinance of Eagle Mountain City, Utah, approving the second amendment to the Fiscal Year 2021-2022 Budget. Councilmember Burnham seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. The motion passed with a unanimous vote.*

14. MOTION

14.A. AGREEMENT – Approving a Deed of Conservation Easement.

City Attorney Jeremy Cook presented the item. The Deer Haven project has been approved subject to the approval of the conservation easement. He feels the restrictions proposed in the easement area are vague and not as the Council had anticipated. This proposal is more restrictive than the applicant had intended and possibly more restrictive than the Council contemplated. He proposed more strict restrictions for Council consideration and inclusion or removal as the Council feels appropriate. Allowances in conservation easements vary significantly. This easement is unique as

it covers developed property both back and front yards making it difficult to restrict all improvements or landscaping.

Councilmember Love said that she prefers the agreement be explicit rather than vague to prevent confusion on permissibility.

Mr. Cook agreed with the desire to be explicit as many of the improvements will not require permits and the potential of enforcement difficulties. However, all the suggested restrictions may not be necessary in order to achieve the intent and purpose of the wildlife corridor.

Applicant representative Scot Hazard said he agrees with the preference of explicit language but feels the zoning language as a whole is confusing and conflicting. He has consternations in the proposed restrictions as his intention has always been for the homeowners to be able to use the land where the lots are encumbered by the wildlife corridor. The purpose of an easement as opposed to a dedication of the land was for the land to remain usable. The way the easement is written, it would be an equivalent of a taking via a dedication of the property. He requested feedback to understand the desires of the Council to allow him to consider if he is able to accommodate their requests. He has not requested additional density or compensation. A developer goes out of business if the project fails to sell the end product for enough money to purchase property for the next development. The margins are narrow on this project and the restrictions as proposed would render it unprofitable. The wildlife corridor covers almost 18 acres of the 40-acre development and over nine acres meet the code of fully developable property under the City's slope standards. He is giving the property up for the easement but desires to be able to use it in a reasonable manner.

Mr. Hazard stated the Eagle Mountain Nature and Wildlife Alliance resident group has expressed concerns with the fragmentation of the corridor. Their view appears to be fragmentation within the corridor, which he views as a contradiction due to the allowance of roads, recreation vehicles, bathrooms, and observation structures. He has viewed wildlife navigate around improvements in backyards such as swing sets, boats, or trampolines. He feels fragmentation means making a section of the corridor impassible and supports wildlife fencing. He objects to requiring approval for many of the uses as the process will be onerous. For the most part, the residents are losing one-third to a half of their property to the easement. In his experience as a real estate broker, the location next to the wildlife corridor will not provide for selling the lots at a premium because the open space is unimproved. If the Council determines all the restrictions are necessary, he either needs to divide the lots into smaller parcels or determine other compensation to make the project financially feasible. He noted that the proposed standards require approval for certain activities or exemptions but do not include clear instructions on the application process. The financial impact of the proposed restrictions is approximately \$100,000 per lot, or a total of \$700,000. The raw ground price of developable property in the City is currently \$125,000 an acre, resulting in an impact of over one million dollars in land he is giving up for the conservation easement.

Mayor Westmoreland acknowledged that Mr. Hazard has invested years of effort to accommodate the corridor and has invested many hours in conversations with various interested parties.

Mr. Hazard said that he is dedicating a 50-foot width of the wash within the 330 feet of the wildlife corridor.

Councilmember Clark said she appreciates Mr. Hazard's efforts. She desires to accomplish the goal and intent of the Wildlife Corridor Overlay Zone which will only work if the property owners agree to the restrictions. She appreciates the Eagle Mountain Nature and Wildlife Alliance resident group reaching out to the Council regarding their priorities and concerns. She suggested reviewing the conservation easement line by line.

Mr. Cook noted the difficulty in anticipating potentially problematic desired future improvement of the lots by residents that purchase the properties that may impede wildlife migration.

Councilmember Clark stated the issues they are addressing are difficult because such considerations are generally governed by homeowner's association covenants, conditions, and restrictions (CC&Rs) versus City regulations. Due to the unique aspects of Deer Haven, the Council could acknowledge the differences and develop standards specific to this subdivision.

Councilmember Curtis advocated for compromise to achieve a resolution amenable to all parties recognizing some sacrifice would be necessary on each side and concurred with establishing standards specific to this project in order to protect a contiguous corridor.

The Council determined to review Mr. Cook's proposed edits to the conservation easement document to address priorities and resolve the concerns of the Council and Mr. Hazard:

- Recitals
 - "J. In accordance with Utah Code Ann. § 57-18-4(4), Grantor is aware of the types of conservation easements and the legal effect and has consulted with an attorney with respect to the implications of granting this Easement."

Mr. Cook explained the Utah Conservation Act requires the inclusion of the language.

Mr. Hazard agreed to retain the language in the agreement.

- Section II
 - A. Affirmative Rights of Grantee.
 - "i. To prevent Grantor or third persons (whether or not claiming by, through, or under Grantor) from conducting any activity on or use of the Easement Property that is inconsistent with maintaining the property predominantly in a natural, scenic or open condition for wildlife habitat, the purpose of this Easement, and to require of Grantor or third persons the restoration of such areas or features of the Easement Property that may be damaged by any inconsistent activity or use;"

Mr. Hazard requested for the term "natural" to be better defined to prevent confusion and advocated for allowing landscaping improvements and lawns. He believes most residents will not fully improve the full lots due to cost and maintenance burdens.

Councilmember Love requested clarification regarding the amount of property intended by the term “predominately.”

Discussion ensued regarding permitting gardens and landscaping while recognizing the deer might eat the vegetation, whether natural means native vegetation, the variance in the impact of setting a percentage on the one-acre lots in comparison to the ten-acre lot, and the ability for wildlife to travel over landscaping improvements.

Staff and Council determined that later verbiage in the agreement indicates that while native landscape is preferred, the addition of non-native vegetation and landscaping should be permitted.

- Section III Easement Property Uses and Restrictions: Use of the Easement Property by the Grantor shall be subject to the following conditions and restrictions. ~~If a use of the Easement Property is not specifically prohibited herein, such use is permitted unless the use violates the terms of this Easement, poses a serious threat of material damage to the Conservation Values protected by this Easement, or otherwise violates any law, local ordinance, or recorded covenant, condition, or restriction.”~~
 - “A. Construction of Structures. No homes, accessory buildings, barns, sheds, enclosures, or other above-ground structures ~~or other structures that require footings~~ may be constructed on the Easement Property. ~~Structures that do not require footings may be constructed.”~~

Councilmember Burnham verified that accessory dwelling units (ADUs) were not allowed in the conservation easement. She suggested setting a square footage limit and clarifying that ADUs and other undesired buildings are prohibited.

Councilmember Curtis expressed concern that “accessory building” is a nebulous term. He is more concerned about the use of the structure than the size of the structure.

Mr. Hazard stated he had recommended not allowing buildings that require footings to limit the size of a building that could be constructed. He envisions allowing sheds or lean-tos to cover animal feed. However, he is undecided on whether to convey animal rights to Deer Haven properties due to use conflicts in the Arrival development and the market not attracting horse owners to the development.

Discussion ensued regarding the types of buildings that require footings.

Councilmember Love suggested restricting homes, AUDs, and buildings that require footings within the conservation easement. Councilmembers Burnham and Clark concurred. Councilmember Curtis stated he had concerns with other buildings.

Mr. Cook suggesting including a size limitation for the square footage of a structure not to exceed 20% of the lot area.

Mr. Hazard stated he was amenable to prohibiting homes, ADUs, and buildings that require footings. His only concern with the percentage limitation is the impact to lot 105 and 106 but feels a 20% allowance is more than adequate.

- “B. Recreational Amenities. No recreational amenities, including, but not limited to, trampolines, swimming pools, swing sets, hot tubs, pergolas, ponds, or riding rinks may be constructed on Easement Property.”

Councilmember Burnham expressed concern with permitting swimming pools due to the possibility of wildlife falling into pools.

Mr. Cook clarified that “riding rinks” are tracks for motocross vehicles.

Mr. Hazard said prohibiting swimming pools should not be an issue for the majority of the lots as residents generally desire proximity to the home; pool and hot tub placement would be outside of the easement. Lots 105 and 106, due to the non-traditional shapes and setbacks, may have issues with locating pools fully outside of the corridor. He would prefer all the other recreational amenities listed to be allowed, other than in-ground and above-ground swimming pools, hot tubs, and riding rinks.

- “C. Hard Surface. Except for a driveway for the primary residence, no concrete or asphalt driveways or parking pads may be constructed on the Easement Property.”

Mr. Cook suggested limiting the square footage of hard surfaces not to exceed 20% of the area.

Councilmember Clark requested consulting an expert to determine if gravel or hard surfaces have an impact on wildlife and if one material is preferable over the other.

Councilmember Clark and Curtis expressed concern that permitting 20% hard surface area within the easement was too permissive.

Mr. Hazard said he prefers for residents to store recreation vehicles and trailers on hard surfaces but had no objection to a 20% limitation. The CC&Rs will require for recreational vehicles to be stored adjacent to a building and he would support including the same requirement in the conservation easement agreement.

- “D. Storage Materials. No materials may be temporarily or permanently parked or stored on the Easement Property, including, but not limited to, shipping containers, trailers, campers, vehicles, equipment, or construction materials. Grantor may store hay or other feed for animals on the Easement Property.”

Discussion ensued regarding the allowance for hay or other feed storage but the prohibition of a structure to store the feed, problematic uses including business uses, and the types of vehicles and equipment to restrict.

Councilmember Burnham expressed concern with the storage of poisonous materials.

Mr. Hazard suggested prohibiting heavy equipment and construction equipment storage and vehicle storage or rental businesses while permitting recreational vehicles within the corridor adjacent to buildings. He agreed with prohibiting shipping containers, outdoor storage, hazardous materials in an open enclosure, and construction materials, other than during active, onsite construction projects.

- “E. ~~Construction During Mule Deer Migration Season and Nesting Season. No construction of any kind, including the construction of trails and/or fences, is permitted during the mule deer migration season and the nesting season unless the Grantor has obtained certification from the Utah Division of Wildlife Resources that the construction area will not impede migration or nesting during the proposed construction period.~~ Mule deer migration season refers to the time of year the mule deer migrate between their winter and summer ranges and occurs between March 15th and April 30th and December 1st through January 15th annually. Nesting season refers to the period of the year in which birds are building nests and raising young and occurs between March 15th and July 31st annually (together the “Restricted Seasons”). The following uses shall not be permitted on the Easement Property during the Restricted Seasons:”

- “i. Construction of any kind, including the construction of trails and/or fences, unless construction area will not impede migration or nesting during the proposed construction period.”

Mr. Cook clarified that he had moved rather than added the requirement. Mr. Hazard confirmed he had no objections to the verbiage.

- “ii. Off-leash dogs, cattle, or other animals that have the potential to scare mule deer or interfere with bird nesting.”

Councilmember Burnham stated that she understands that the DWR would likely desire all dogs to be prohibited but a balance needs to be achieved.

Discussion ensued regarding the difficulties in determining the appropriate number of dogs to allow in order to mitigate impacts to the wildlife corridor and the number of dogs currently permitted in Municipal Code standards per acreage of property with the option for the Planning Commission to approve additional dogs.

Mr. Cook explained that the language was intended to be vague as the City would only enforce egregious situations where dogs were preventing the migration of the mule deer.

Mr. Hazard stated that as the number of dogs is already controlled elsewhere in Municipal Code, he did not feel it needed to be stipulated in the agreement but he would be open to limiting the number of dogs to four for the entire project. Nevertheless, he is concerned prohibiting dogs in the corridor during migration and nesting season will be cumbersome and difficult to enforce. Implementing one standard for all the lots for the entire year would be easier to control.

- F. Fences:
 - “i. Wildlife Impermeable Fencing. Wildlife impermeable fencing is prohibited on the Easement Property or on the sides of the Easement Property that connect to other portions of the Easement Property or open space, except along the perimeter of the Easement Property, where it is encouraged. Wildlife impermeable fencing is defined as a fence or wall, other than a retaining wall, that prevents various species of wildlife from freely passing through with little or no interference. Except for gates and associated gate support components, a fence or wall that is higher than 8 feet above grade, inclusive of any wire strands placed above a top rail of a fence or wall, is considered impermeable fencing.”

Mr. Hazard stated he had a conversation with Ms. Cameron regarding the purpose of requiring wildlife fencing and he agreed with her reasoning and has no objection to the requirement. He stated he was willing to include in the CC&Rs that wildlife impermeable fencing outside of the wildlife corridor is only permitted to protect a garden, orchard, or another specific purpose.

Mr. Cook and Mr. Hazard agreed to remove Section VIII – Baseline Documentation Report as it had been included for tax purposes but was later determined not to be necessary to be included in the conservation easement documentation.

Mayor Westmoreland stated that due to the emotions regarding the project and the desire to accommodate two things that are important to the City – wildlife and property rights – he would allow public comment.

Bettina Cameron was recognized to speak. Ms. Cameron said she was disappointed in some of the changes and beseeched the Council to limit the terms of the approval to the lots in Deer Haven, due to the unique terrain and limitations of the property, and exclude all other areas within the wildlife corridor as considerations for other areas of the corridor will require different standards.

Councilmembers Burnham, Clark, and Love supported Ms. Cameron’s suggestion to limit the agreed-upon term specifically to the conservation easement for Deer Haven.

Discussion ensued determining to table the item to allow time for Mr. Cook to redraft the language to include the amendments agreed upon by the Council and Mr. Hazard and to provide an opportunity for additional public comment on the changes.

MOTION: *Councilmember Clark moved to table an agreement approving a deed of conservation easement with direction to staff to prepare an amended agreement to review at the next possible City Council meeting. Councilmember Love seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. The motion passed with a unanimous vote.*

15. CITY COUNCIL/MAYOR'S BUSINESS

16. CITY COUNCIL BOARD LIAISON REPORTS

Councilmember Curtis

Councilmember Curtis said the Library Advisory Board is seeking applicants for two vacancies and recommended his wife to fill one vacancy. He asked if anyone had any objections to let him know.

Councilmember Burnham

Councilmember Burnham said the Senior Citizen Advisory Council has a vacancy that needs to be filled by the end of the year with a preference for an individual with technical skills.

Councilmember Love

Councilmember Love said the Eagle Mountain Chamber of Commerce will hold an after-hours activity on October 14, 2021, from 5:30 to 7:00 p.m. at MTECH Trades and Tech Building and a combined chamber bowling activity on November 2, 2021, from 11:45 a.m. to 1:00 p.m. at Fat Cats in Saratoga Springs.

Councilmember Clark

Councilmember Clark said Be Ready Eagle Mountain is holding a preparedness class on October 21, 2021, at 7:00 p.m. at City Hall with special guests Columbine survivors Laura Hall and Sarah Bush speaking about hope and healing for traumatic experiences. A successful drill and after-action report meeting were held. The team has trained and licensed 220 Ham radio operators in the City and the repeater station is almost completed. A draft version of the City's emergency plan will be presented to the Council soon. The Parks and Recreation Advisory Board has a vacancy.

Director of Administrative Services/City Recorder Fionnuala Kofoed said she is working with the Youth Council to prepare and run a booth at Halloween Town. She announced that a debate for the Mayoral and City Council candidates on the ballot for the upcoming municipal election will be held on October 18, 2021, at 7:00 p.m. at City Hall. Residents may attend the debate in person or watch the live broadcast via a link on the City website.

17. COMMUNICATION ITEMS

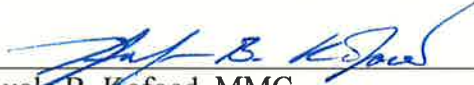
17.A. Upcoming Agenda Items

18. ADJOURNMENT

MOTION: *Councilmember Clark moved to adjourn the meeting at 9:47 p.m. Councilmember Love seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. The motion passed with a unanimous vote.*

The meeting was adjourned at 9:47 p.m.

Approved by the City Council on October 19, 2021.


Fionnuala B. Kofoed, MMC

Director of Administrative Services/City Recorder

